Irshad Ahmad vs State Of Nct Of Delhi on 13 March, 2024

Author: Anoop Kumar Mendiratta

Bench: Anoop Kumar Mendiratta

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
% Date of Decision
+ BAIL APPLN. 894/2024 & CRL.M.A. 7752/2024
IRSHAD AHMAD .....
Through: Mr. Rahul Mehra, Sr. Adv
Mr. Kushal Kumar, Mr. Ch
Gosain, Mr. Anand Thumba
Mr. Akash Deep Gupta, Ad

versus
STATE OF NCT OF DELHI .....
Through: Mr. Ajay Vikram Singh, A
Inspector Pankaj Thakran
Branch.

CORAM:
HON'BLE MR. JUSTICE ANOOP KUMAR MENDIRATTA
% ORDER
ANOOP KUMAR MENDIRATTA, J (ORAL)

1. An application under Section 438 of the Code of Criminal Procedure, 1973 ('Cr.P.C.') has been preferred on behalf of the petitioner seeking anticipatory bail in FIR No.0014/2024, under Sections 419/420/120B/34 IPC and Sections 66C/66D of IT Act, registered at P.S.: Crime Branch, Delhi.

2. In brief, as per the case of the prosecution and status report placed before learned ASJ, Dwarka Courts, New Delhi, on the intervening night of 11/12.01.2024, on a secret information, a raid was conducted at H. No. 426, 1st Floor, Village Kakrola, Delhi, wherein, a fake call centre was found being operated by accused SK Aslam and Rai Singh. 11 tele-callers were also present at the spot, who were making/receiving calls through computer/laptops and head phones.

3. It is further the case of the prosecution that tele-callers were impersonating themselves as employees of Amazon and receiving calls from customers, who were facing problems related to Amazon Prime Videos and other services provided by Amazon. Further, on receipt of calls, the said tele- callers convinced the customers, based in foreign countries, to buy gift vouchers (i.e. Amazon, eBay, Nord, etc.) and further asked the customers to scratch the card and provide the said numbers for the purpose of encashing, in order to obtain illegal gains. It is also alleged that some other person by way of hacking system dropped pop-up messages on the screen of the customers, whereby, the customers used to call on the numbers dropped through the said messages and the calls would get connected to the fraudsters. Vicky Sharma @ Kunal Sharma @ Peter @ Bryan and applicant/petitioner Irshad Ahmad are alleged to be the owners and kingpin of the scam.

4. Learned counsel for the petitioner submits that the petitioner was only one of the Directors of M/s Tremendous Trips Private Limited, of which, Vicky Sharma was also the Director and had been managing, operating and conducting the affairs of the company. It is urged that several documents including Certificate from Registrar of Companies, UDYAM Registration Certificate, DGFT Certificate and the application for operating the business for 24 hours sought from the concerned DCP reflect that Vicky Sharma was running the business. It is also submitted that Vicky Sharma was also associated with Avast business as well as AWS and the petitioner had no connectivity with the said business.

It is emphasized by him that co-accused Vicky Sharma and two Managers are already in custody and nothing is to be recovered at the instance of the petitioner, since the digital devices have already been seized.

It is also pointed out that there is no evidence in possession of the Investigating Agency to link the petitioner/applicant with any alleged fraud committed by Vicky Sharma.

It is further submitted that there is no complainant/victim, who has made any allegations of fraud/duping by the accused and the entire investigation has been initiated only on the basis of secret information. It is contended that in the absence of any loss or gain, the ingredients of Section 420 IPC are not made out and WhatsApp messages, relied upon by the prosecution, are yet to be supplied to the petitioner and not relevant against the petitioner.

5. On the other hand, learned APP for the State vehemently opposes the application and points out that petitioner has failed to join investigation despite service of notice under Section 41(A) Cr.P.C. which was affixed on the premises of the petitioner. It is also pointed out that despite issuance of non-bailable warrants, petitioner has evaded to join the investigation and the scam involves hawala transactions since the money received from encashing of said gift vouchers was received abroad and the benefits thereof have been illegally transferred in favour of the accused. It is further submitted that there is sufficient evidence with the Investigating Agency by way of Whatsapp messages, which were collected during the course of investigation and reflect the chat of the petitioner with the employees working in the call centre. It is also submitted that chargesheet stands filed against two of the co- accused, but has not been filed against present applicant, since he is absconding. Reliance is also placed upon order dated 17.01.2022 passed by this Court in CRL.REV.P. 33/2022 titled as Navneet Bhatnagar v. State, wherein, the benefit of anticipatory bail to the petitioner was declined.

6. I have given considered thought to the contentions raised.

Admittedly, the petitioner has failed to join the investigation and has been evading to appear before the Investigating Agency. The modus operandi adopted to defraud the innocent customers in a systematic manner, who were based abroad requires deeper investigation. Also, the trail of money by hawala transactions needs to be unearthed.

At this stage, petitioner cannot be presumed to have no association with the running of fictitious call centre, since Investigating Agency is in possession of WhatsApp messages of the petitioner

exchanged with staff deployed at the call centre and the same needs to be investigated. Merely because the gadgets have been seized from the call centre, it cannot be said that custodial interrogation of the petitioner is not required, as the modus operandi adopted by accused has deeper ramifications. It is also pointed out by learned APP for the State that though Vicky Sharma had been in forefront in managing the company, the petitioner has been equally responsible for running the illegal call centre.

7. Considering the nature of fraud, modus operandi adopted by accused and grave nature of allegations, no grounds for anticipatory bail are made out.

Application is accordingly dismissed. Pending applications, if any, also stand disposed of.

(ANOOP KUMAR MENDIRATTA) JUDGE MARCH 13, 2024/R